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SETTLEMENT FOR PARTNERS AND FAMILY MEMBERS



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SETTLEMENT FOR PARTNERS AND FAMILY MEMBERS

The UK offers several routes to settlement for partners and family members of British citizens and settled persons in the UK, under the **Spouse or Civil Partner** ([/personal-immigration/partners-family-visas/spouse-civil-partner/](https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/spouse-civil-partner/)), **Unmarried Partner** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/unmarried-partner/>), **Adult Dependent Relative** ([/personal-immigration/partners-family-visas/adult-dependent-relative/](https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/adult-dependent-relative/)) and **Child** (<https://immigrationbarrister.co.uk/personal-immigration/partners-family-visas/children/>) immigration routes.

What are the main eligibility requirements for Settlement for Partners and Family Members?

If applying for indefinite leave to remain as a Spouse, Civil Partner or Unmarried Partner, you will need to have completed 5 years (60 months) in the UK as the partner of a British citizen or settled person. You will also need to satisfy the strict financial requirement under Appendix FM to the Immigration Rules.

Unless an exemption applies, you will also need to meet the higher English Language requirement that applies to settlement applications and have passed the Life in the UK test.

If applying for indefinite leave to enter or remain as an Adult Dependent Relative or Child, you will need to demonstrate that you will be adequately maintained, accommodated and cared for without recourse to public funds. There is no English language requirement and it is not necessary to pass the Life in the UK test.

Each of the family related settlement categories also have their own additional eligibility criteria, which are summarised below.

What else do I need to know about Settlement for Partners and Family Members?

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If you qualify for settlement, or indefinite leave to remain, you will be able to stay in the UK without any time restrictions. (<https://www.google.co.uk/g=richmond+chambers+in+immigration+barristers>)
Your settled status will lapse if you are absent from the UK for more than 2 years. If your ILR has lapsed, you may wish to consider applying for a **Returning Resident** (<https://immigrationbarrister.co.uk/personal-immigration/settlement-in-the-uk/returning-residents/>) visa in order to return to the UK.

Achieving permanent resident status is central to qualifying for a British passport, since **Naturalisation as a British Citizen** (<https://immigrationbarrister.co.uk/personal-immigration/british-citizenship/british-citizenship-naturalisation/>) requires that the applicant be settled in the UK.

You will not need to satisfy the English language requirement or pass the Life in the UK test if you are under 18 or at least 65 years of age. The Home Office also has a discretion to waive the requirement if it would be unreasonable to expect you to fulfil that requirement due to a mental or physical condition. Various other exemptions also apply.

How our immigration barristers can help

Our immigration barristers regularly advise and assist family members to settle in the UK with their British citizen and settled partners.

Whether you require expert advice on the requirements of the Immigration Rules, an independent assessment of your prospects of qualifying for settlement or professional assistance with preparing an application for indefinite leave to enter or remain, our immigration barristers are experts on settlement for partners and family members.

We pride ourselves on being approachable and proactive in understanding and meeting our clients' needs. We are a highly driven team, dedicated to providing clear and reliable immigration advice to family members as part of a professional and friendly service.

WE CAN ALSO ASSIST WITH

Indefinite leave to remain as a Spouse or Civil Partner



Indefinite leave to remain as an Unmarried Partner



Indefinite leave to enter as an Adult Dependant Relative



Indefinite leave to enter as a Child



Indefinite leave to remain as a Child

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Naturalisation as a British Citizen

WHAT CAN WE HELP YOU WITH?

To arrange an initial consultation meeting with one of our immigration barristers, contact our Settlement visa team on 0203 617 9173 or complete our enquiry form.

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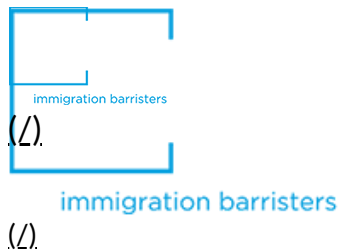
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LONDON OFFICE

Richmond Chambers LLP
Seven Henrietta Street
Covent Garden
London
WC2E 8PS

T / +44 0203 617 9173 (tel:+4402036179173)
E / info@richmondchambers.com (mailto:info@richmondchambers.com)

MONTREUX OFFICE

Avenue Des Alpes 80B
Montreux 1820
Switzerland

T / +41 21 588 07 70 (tel:+41215880770)
E / info@richmondchambers.ch (mailto:info@richmondchambers.ch)

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